



INTER-OFFICE COMMUNICATION

TO: Norma Nino-Quinn
Jen Nichols
Quyên Dao
Laurie Kraenzler

FROM: Penny Schumacher
Director, Labor Relations

DATE December 12, 2023

SUBJECT: CURRENT CONTRACT NEGOTIATIONS, CONTRACT RENEWAL
UNION LOCAL: BCTWGM Local 125, Alameda, Contra Costa
ESC CONTRACT ID: #0114

This is to advise that the Employer offer for settlement of the above referenced contract was ratified on December 12, 2023. Attached is the Contract Renewal outlining the major changes contained in this settlement.

This is also your authorization to implement the changes outlined in the attached Contract Renewal, including the lump sum ratification bonus payable as soon as possible following ratification. Details are outlined on the attached pages.

If you have any questions, or need any further information concerning these settlements, please let us know.

Yours truly,

Penny Schumacher

cc: Karl Schroeder
Randy Anderson
Kevin Lovell
Kelli Elson
George Glukfeld
Rick Pickering
Stephen Randi
Jeff Mason, HR
Brent Bohn
Frank Jorgensen
Jessica Taylor
Ethel Gonzalez

CONTRACT RENEWAL

CONTRACT ID(S): #0114 LA IDS:

- 0114BK -General
- 0114SL - San Leandro

CONTRACT NAME/DESCRIPTION: NorCal - Baker Oakland 125

UNION LOCAL(S): BCTGM Local 125

SAFEWAY NEGOTIATOR: Frank Jorgensen and Penny Schumacher

CONTRACT EFFECTIVE DATE: April 11, 2023

CONTRACT EXPIRATION DATE: April 13, 2026

CONTRACT RATIFICATION DATE: December 12, 2023

WAGE RATE CHANGES:

Effective 04/11/2023: Increase Bakery Manager by \$0.73 at all locations. Increase the thereafter/ Journeyperson Baker by \$0.55 all locations. Increase Cake decorator thereafter/journeyperson all locations to the rate of \$17.50.

Wage progression step change due for Baker and Cake Decorator job codes. Placement in the new progressions and rates of pay will be determined by the actual progression hours accumulated by the employee as of the 2nd Sunday after ratification. Hours need to be pulled and placement determined by ESC and then forwarded to labor for approval.

Effective 04/09/2024: Increase all Journeyperson and above wage rates excluding Donut/cleanup/bakeoff position by fifty-five (\$.55) cents per hour*. Donut/cleanup/bakeoff increase all journeyperson by twenty-five (\$.25) cents per hour*.

Effective 04/05/2025: Increase all Journeyperson and above wage rates excluding Donut/cleanup/bakeoff position by fifty-five (\$.55) cents per hour* Donut/cleanup/bakeoff increase all journeyperson by twenty-five (\$0.25) cents per hour*.

*Above scale employees will be paid an equivalent bonus in lieu any wage increases for any scheduled wage increase.

RETROACTIVE PAY: None

RATIFICATION BONUS: All Journeyman/Thereafter and above employees, except Donut/Cleanup/Baker Helper, shall receive a lump sum Ratification bonus payment of fifty-five cents (\$.55) per hour, based on all hours compensated from April 11, 2023, thru the week of ratification, as soon as possible after ratification. Employees must be on the payroll at the time of ratification and when the ratification bonus is paid.

OTHER LUMP SUM BONUS PAYMENT(S):

Over scale thereafter employees will not be eligible for any hourly wage increases on any wage increase dates; a bonus payment will be due and payable within 30 days following wage increase date based on straight time hours worked in the prior 52 weeks.

GIFT CARD PAYMENT(S): None

HEALTH & WELFARE/DENTAL/VISION:

Employer H&W Contributions

<u>Current Rates:</u>	\$ 1289.02 H&W
	\$ 51.50 Dental
Total	\$1340.52

New/Future Rates:

Effective with the May 2023 contribution on April 2024 hours, increase the total Employer H&W and Dental contribution by \$60.00 per month up to \$1400.52 per month, if needed to maintain the current benefits. In the event that the increase is not needed on the date indicated, such amount not needed shall "rollover" and be available the following year.

Effective with the May 2024 contribution on April 2024 hours, increase the total Employer H&W and Dental contribution by \$60.00 per month up to \$1460.52 per month, if needed to maintain the current benefits. In the event that the increase is not needed on the date indicated, such amount not needed shall "rollover" and be available the following year.

Effective with the May 2025 contribution on April 2025 hours, increase the total Employer H&W and Dental contribution by \$60.00 per month up to \$1520.52 per month if needed to maintain the current benefits. In the event that the increase is not needed on the date indicated, such amount not needed shall "rollover" and be available the following year.

Employee H&W Contributions

Current Rates: Current employee weekly deduction of either \$15.00 week for the Blue Cross Standard Plan or \$87.69 if the employee chooses the higher priced plan.

New/Future Rates: None

Other changes: None

Total H&W Contributions:

Current Rates: \$1405.52 for standard plan, \$1655.52 for other plan (HMO)

New/Future Rates: Will be determined if contribution increases are applied.

Other Changes: The Employer agrees to merge employees from the B & C Western Conference Dental fund to the Northern California Bakery & Confectionery Health and Welfare Fund. The cost shall remain the same at \$51.50 per member, per month

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PENSION:

Employer Pension Contributions:

Current Rates: \$3.1220 includes PPA

New/Future Rates: No change

Other changes: Rate is Frozen under the PPA Rehab Plan revision dated December 2020.

PENSION PROTECTION ACT (PPA):

Employer Pension/PPA Contributions

Current Rates: \$3.1220

New/Future Rates:

FOR CONTRACTS WITH SAFEWAY H&W AND/OR PENSION BENEFITS

Employer Pension Contributions: N/A

Current Rates: N/A

New/Future Rates: N/A

WORKING HOURS AND OVERTIME PROVISIONS No Change

PREMIUM PAY: Increase Night Premium to \$0.50 effective April 11, 2023. (Earn Codes 041/241)

New Classification: Baker Trainer – Job Code 12187. Reference job code 11000. \$3.00/hour premium (earn codes 534/542. Reference earn code 041/241). Effective April 11, 2023.

Employees Hired on or after April 11, 2023, shall receive \$0.25 per hour for Sunday Premium. (Earn Codes 047/247).

HOLIDAYS:

Holiday Not Worked Pay: No Change

Holiday Premium Pay: No Change

Other changes: No change

VACATIONS: Introduction of Paid Time Off

ARTICLE VII
VACATIONS / PAID TIME OFF

Section 7.1 Length of Vacation

All employees, hired prior to April 11, 2023, covered by this Contract who qualify shall be entitled to a vacation with pay in accordance with the following schedule:

Weeks of Vacation

Years of Service With Pay

1 year 1 week

2 thru 4 years 2 weeks

5 thru 11 years 3 weeks

12 thru 19 years 4 weeks

20 thru 24 years 5 weeks

25 or more years 6 weeks

Employees hired on or after April 11, 2023, and who qualify shall be entitled to a vacation with pay in accordance with the following schedule:

Weeks of Vacation

Years of Service With Pay

1 Year 1 week

2 - 6 years 2 weeks

7 - 14 years 3 weeks

15 - 19 years 4 weeks

20 or more years 5 weeks

As used in the above schedule, a "year of qualifying employment" means a "year of employment in which the employee meets the requirements for a vacation with respect to that year or calendar year of employment"; provided further that in the event the Employer purchases an additional market in the collective bargaining area and as part of the purchase agreement retains the market employees of the former owner, those employees who are retained for thirty (30) days or more after the business is transferred to the Employer shall be credited with each successive year of full-time employment with their previous employer as years of qualifying employment.

Employees with two (2) weeks of vacation or more may use up to one (1) week as single vacation days. Employees with one (1) week of vacation shall take vacation in increments of

one (1) week. The day(s) scheduled will be by mutual agreement by the Employer and Employee. All other terms and conditions pertaining to vacations will apply.

Paid Time Off: Employees hired on or after [date of ratification] will be entitled to Paid Time Off ("PTO") in accordance with the following schedule:

Years of Service Total PTO Days (Maximum) 40 hour workweek earned over 50 weeks/calendar year (Maximum)

0-4 Years 12 1.92

5-14 Years 17 2.72

15-24 22 3.52

25+ Years 27 4.32

Employees on PTO will follow the Company's normal PTO plan as may be amended from time-to-time, and Sections 7.2 "Vacation Qualifications" and 7.3 "Vacation Administration" are not applicable.

SICK PAY:

A. All employees covered by this Agreement who have been continuously employed by the

Employer for the period of at least one (1) year shall be entitled to a total of five (5) days' sick leave with pay per year. Such sick leave pay shall commence on the first (1st) working day lost for each disability. If the Employer so desires, he may require a Doctor's Certificate or other reasonable proof of disability after the second (2nd) day of absence.

G. All unused Sick Leave benefits, up to a maximum of forty-five (45) days, shall be paid out at the employee's rate of pay upon retirement. Termination for any other reason other than retirement shall not result in any payout of Sick Leave benefits. (Previously paid out at 50% of the employee's rate of pay)

JURY DUTY: No change

FUNERAL LEAVE: No change

OTHER LEAVES OF ABSENCE: No Change

UNION DUES/POLITICAL ACTION COMMITTEE/OTHER DEDUCTIONS: No Change

BOOT/TOOL ALLOWANCE: N/A

OTHER MAJOR CHANGES: None